

Court No. - 32

Case :- WRIT - C No. - 17832 of 2022

Petitioner :- Udai Narayan Yadav

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Rakesh Singh

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Vikram D. Chauhan, J.

As prayed on behalf of the learned counsel for the petitioner, put up on 11.07.2022 as fresh.

Order Date :- 28.6.2022

Harshita

Court No. - 3

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Petitioner :- Udai Narayan Yadav

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Rakesh Singh

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard Sri Rakesh Singh, learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Udit Chandra, learned counsel for the respondent No.2 and 3.

This writ petition has been filed praying for the following relief:

"i. issue a writ, order or direction in the nature of certiorari quashing the recovery citation dated 20.04.2022 under rule-141(3) of U.P. Revenue Code 2006, issued by the Tehsildar, Tehsil Saidpur, District Ghazipur (Respondent no.5)."

Sri Udit Chandra, learned counsel for the respondent No.2 and 3/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under **Para 6.5 of U.P. Electricity Supply Code, 2005** before the respondent No.3, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 15.7.2022

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